

IN THE SUPREME COURT OF PAKISTAN
(Review Jurisdiction)

Present:

Justice Amin-ud-Din Khan
Justice Muhammad Ali Mazhar
Justice Syed Hasan Azhar Rizvi

C.M.A.10365/2025 IN C.R.P.484/2025

(Permission to file and argue / Permission to file and argue)

C.R.P.484/2025 IN C.P.L.A.687/2022

(Review against the judgment/order of this Court dated 05.12.2024)

Zia ur Rasheed Abbasi

.....Petitioner

Versus

Federation of Pakistan through Secretary
Finance Division, Islamabad and others

...Respondents

For the Petitioner:	Mr. Taimoor Aslam Khan, ASC Mr. Anis Muhammad Shahzad, AOR
For the Federation:	Ch. Aamir Rehman, Addl. AGP
For Respondent-1:	Mr. Khalid Zia, SO Mr. Abdur Rehman, APS
For Respondent-5:	Syed Ejaz Iqbal Shah, DG Law
Date of Hearing:	12.11.2025

ORDER

Muhammad Ali Mazhar, J. The Civil Miscellaneous Application No. 10365/2025 has been brought to entreat a permission to move and argue Civil Review Petition 484/2025 which has been presented in C.P.L.A.687/2022 decided on 05.12.2024. The Review Petition was numbered and on 30.10.2025, notice was also issued to the respondents.

2. According to the chronicles, the Federation of Pakistan had preferred C.P.L.A.687/2022 for challenging the Judgment dated

05.01.2022, passed by the learned Federal Service Tribunal, Islamabad (**FST**) in Appeal No. 814(R) CS/2019. In fact, the respondent No. 1 in that case was appointed as Assistant (Admin) SPS-5 in Pakistan Atomic Energy Commission (**PAEC**), Islamabad. However, he applied for the vacancy of Assistant Director (Admin) BS-17 in the Department of Libraries, Ministry of Education (Defunct), Islamabad and ultimately, he was appointed on the recommendation of Federal Public Service Commission (**FPSC**) vide the Office Order dated 24.05.2010. Being aggrieved by disallowing the benefit of pay-protection in its latter department, he approached FST, Islamabad. His appeal was allowed by FST with the directions to the department to take all the necessary measures for granting the benefit of pay-protection according to Last Pay Certificate (LPC) issued by the Pakistan Atomic Energy Commission. After considering various relevant provisions of law and rules including the effect and niceties of different Office Memoranda issued and applicable to the controversy which were ignored by FST including certain binding decisions, we held that when any decision of a Court or Tribunal is found in ignorance or lack of knowledge of a relevant statutory provision or a binding decision of court of earlier provisions or decisions, it is called a decision per incuriam when it vividly puts on a show that the decision was made in unfamiliarity/ignorance or obliviousness of pertinent statutes or precedents as done in this case by the FST. Finally, the Civil Petition (C.P.L.A. No.687/2022) was converted into an appeal and allowed and the judgment passed by the FST in the aforesaid case was set aside and as a consequence thereof, the Service Appeal filed by the said employees (Muhammad Atiq-ur-Rehman and others) was also dismissed.

3. Indeed the case brought for our consideration and clarity by means of aforesaid C.M.A and Review Petition is that the petitioner was serving as Additional Director, Securities and Exchange Commission of Pakistan (**SECP**), but his services were requisitioned by the President's Secretariat (Public) Islamabad. Pursuant to a Notification, he assumed charge against the vacant post of Director

General (BS-20) with effect from 25.06.2024 on deputation for a period of three years in his own pay scale (**OPS**) after completion of codal formalities and approval accorded by the competent authority of SECP. The learned counsel for the petitioner articulated that his client is not a fresh appointee but his services were requisitioned on deputation basis for three years but due to wrong interpretation of the judgment rendered in C.P.L.A. No.687/2022, the Finance Division, issued an Office Memorandum dated 20.08.2025, wherein, certain guidelines for fixation of pay of employees of Autonomous/Semi-Autonomous Bodies or Corporations on Deputation Basis in Federal Government were revised and it was explicated that the pay of such an employee on deputation will be fixed at the initial pay of the new post and eventually, AGPR issued a Revised Pay Slip to the petitioner.

4. Though, the Finance Department relied on the aforesaid judgment of this Court but the fact remains that before applying this judgment, the ratio decidendi should have been considered in its literal sense rather than extraneous interpretation. What we held in our judgment was that as per policy, the employees of such autonomous organizations, established through a resolution are extended the benefit of fixation of pay in the manner as set out in FR 22 on their subsequent appointment in the government service if they have adopted government pay scale scheme in totality. Furthermore, the employees of Atomic Energy Commission of Pakistan have special pay scales (**SPS**), therefore, they were not entitled for protection of pay in terms of policy guidelines issued vide Finance Division's O.M.No.4(2)R-2/96 dated 12.08.2002. We also discussed in our judgment the nitty-gritties of Fundamental Rule.22, which depicts the criteria of regulating initial substantive pay of a government servant who is appointed substantively to a post on a time-scale of pay. Moreover, we had also dilated upon the dictum laid down in the case of "Muhammad Azam Chaudhry Vs. Federation of Pakistan", (**Civil Appeal No.1158 of 2009**), which was heard and decided by the five members Bench of this Court vide judgment dated 17.02.2016 and held that the appellant was an

employee of the statutory autonomous body having switched over to Government Service, which is a different creed of employees and cannot claim the benefit of F.R.22 (a)(i) or (ii) of 1992, which is applicable to Civil Servants on their appointment subsequently to another post as a Civil Servant. The substrata of our judgment without any bewilderment or perplexity has nothing to do with any employee whose services are opted on deputation for certain period of time on OPS basis by a consensual arrangement by the competent authorities of donor and donee organizations.

5. By and large, the expression “deputation” epitomizes a sort of temporary transfer of an employee from his parent department or organization to another department or organization for a limited span of time to fill a post which cannot be considered a permanent absorption or switch over of job/employment. It is quite common practice in civil service and other governmental authorities/departments where on account of some exigencies, the services of employees may be lent from one cadre or department to another to serve for a limited period but for all intent and purposes, a deputationist remains an employee of his lending department/organization but during the period of deputation, he serves and performs his duties in the borrowing department/organization and may be repatriated to his parent department once the period of deputation is culminated or the notification or arrangement of deputation is recalled by the lending department/organization or borrowing department. The consensual arrangement of deputation between lending and borrowing authorities is lucidly depicted from the Notifications dated 11.6.2024, issued by the Section Officer, Cabinet Secretariat, Establishment Division, Government of Pakistan; letter dated 12.6.2024, issued by Section Officer, Finance Division, Government of Pakistan to the Chairman SECP; letter dated 25.6.2024, addressed by Director/HOD-HR&T of SECP to Section Officer, Finance department Islamabad and last but not least, the notification dated 28.6.2024, issued by Director (Admin), President’s Secretariat.

6. It is a well settled exposition of law that a “judgment in rem” declares, defines and determines the jural relation of a person or thing to the world generally. It amounts to a decision on the status of a specific matter or on an individual’s rights in respect of a certain matter, which is not only conclusive between the contesting parties but also as against the world. The preview of our judgment unequivocally demonstrates that it has nothing to do with any set of circumstances, contingency or any question entangling the status of any employee on deputation for specific or limited period of time from one organization to another organization on OPS through consensual arrangements between the lending and borrowing authorities/organization. Rather, our judgment is self-contained, unambiguous, and qualified which is based on the questions of law and pleas raised vice versa which neither require any extraneous or peripheral interpretation nor heading to any guesswork or manifold imaginable connotations to bring the deputationist within the domain or realm of judgment which was neither adverted to nor the subject matter of the lis nor it was raised by any party.

7. When we confronted the ratio of our judgment to the learned Ch. Aamir Rehman, Addl. AGP, he candidly conceded that the judgment sought to be reviewed has nothing to do with service rendered on account of deputation by civil servants or employees of any autonomous/statutory body.

8. Although, no case for review of our judgment is made out but in the fitness of things and in the larger public interest, we simply clarify being mindful and sanguine to the miseries suffered by deputationists by dint of wrong interpretation of the judgment inasmuch as for the completeness of justice that the scope and semblance of the judgment rendered by us in **C.P.L.A.687/2022 (Federation of Pakistan vs. Muhammad Atiq-ur-Rahman & others 2025 SCMR 790 = 2025 PLC (C.S) 612)** does not apply to the cases of employees whose services are requisitioned on deputation for limited period of time.

9. As a result of above discussion, the C.M.A and Review Petition are disposed of accordingly. Office is directed to transmit the copy of this clarificatory order to the Secretary, Finance Division, (Regulation Wing), Government of Pakistan.

Judge

Judge

Judge

ISLAMABAD
12th November, 2025
Mudassar
Approved for reporting